市场开发顾问合作协议 (中方正文)

甲方：香港精益微型轴有限公司 (HONG KONG JINGYI MINIATURE AXLE COMPANY LIMITED) 地址：观塘成业街16号怡生工业中心C座3/F C1 法定代表人：董云岳

乙方：島岡 学 (SHIMAOKA MANABU) 地址：〒212-0024 神奈川県川崎市幸区塚越4-314-2-712

第一条 合作内容

1. 甲方拟发展日本市场，乙方协助甲方开拓包括但不限于以下业务：日本本田 (HONDA) 及其相关变速箱项目、安斯泰莫 (Hitachi Astemo) 总部及海外业务、丰田 (TOYOTA) 及爱信 (Aisin) 公司业务拓展。
2. 合作与共同努力：甲乙双方应建立紧密的合作伙伴关系，共同致力于实现日本市场的项目定点及业务落地。乙方应凭借其专业优势尽最大努力履行职责，甲方亦应积极配合乙方的开发活动，包括但不限于安排人员赴日进行客访、提供必要的技术支持及快速响应客户需求，双方共同推动项目取得成功。双方理解并同意，最终的项目授予由客户决定，但双方均承担为达成目标而共同奋斗的诚信义务。
3. 乙方每月至少通过电子邮件或双方认可的视频会议一次，提供日本市场开发规划，并共享相关信息。

第二条 授权范围

1. 甲方授权乙方在本协议约定的业务范围内，可以使用甲方的标识 (LOGO)、名称及宣传手册等。
2. 乙方可根据日本市场需求将相关资料翻译成日语。所有日语译文在正式对外使用前，必须获得甲方的书面认可。

第三条 双方的权利义务

1. 甲方有权对乙方的服务过程进行监督。乙方在顾问期间为本项目专门创作的特定成果无偿归甲方所有。
2. 若因乙方故意或重大过失给甲方造成直接损失，乙方应按实进行赔偿。但**乙**方的总赔偿限额不得超过甲方在本协议项下过去12个月内向乙方实际支付的顾问费总额。

第四条 合作顾问费用支付标准

1. 顾问费为每月 JPY 500,000 (实得金额/Net)，于每月10日前支付。甲方所在地的所有源泉税及跨境汇款手续费由甲方承担，确保乙方指定账户每月足额收到500,000日元。乙方应按照日本当地法律所应缴纳的税款等费用由乙方自行申报、承担。
2. **乙方收款账户：**
    - 银行名称：MIZUHO BANK.,LTD. (KAWASAKI BRANCH)
    - SWIFT CODE：MHCBJPJT
    - 账户名称：MANABU SHIMAOKA
    - 账号：5080282
3. 乙方因甲方要求或陪同甲方人员共同访问客户所发生的实际差旅费，由甲方报销。

第五条 免责条款

任何一方因不可抗力事件发生而给对方造成损失的，不承担责任。

第六条 合作期限

1. 本协议有效期自2026年4月1日至2027年3月31日。
2. 续期：任一方在协议期满前30日书面通知另一方是否续签，否则本协议自动终止。

第七条 协议解除和终止

1. 任何一方均有权提前30天通知对方单方面解除本协议。
2. 补偿条款：协议终止后12个月内，若乙方曾参与推进的客户与甲方达成合作，甲方仍应向乙方支付相应的顾问报酬（具体金额由双方另行协商）。

第八条 保密条款

1. 乙方应对履行过程中获得的甲方信息负有保密义务。
2. **赔偿限额：**本条项下的赔偿金额受本协议第三条第二款约定的总赔偿限额的约束。

第九条 争议解决

1. 本协议受香港特别行政区法律管辖。
2. 争议应首先友好协商；协商不成，提交香港国际仲裁中心 (HKIAC) 进行仲裁。仲裁语言为英语或日语。
3. 本协议以中文及英文作成。若产生歧义，以英文版为准。

第十条 附则

1. 本协议自双方签字盖章后生效。本协议一式两份，双方各执一份。

Market Development Advisory Agreement (English Reference)

Party A: HONG KONG JINGYI MINIATURE AXLE COMPANY LIMITED Address: 3/F C1, Block C, Yee Seng Industrial Centre, 16 Shing Yip Street, Kwun Tong Legal Representative: Dong Yunyue

Party B: MANABU SHIMAOKA Address: 712, 4-314-2 Tsukagoshi, Saiwai-ku, Kawasaki-shi, Kanagawa 212-0024, Japan

Article 1: Scope of Cooperation

1. Party A intends to develop the Japanese market, and Party B shall assist Party A in developing the following business opportunities: Honda (HONDA) and its transmission projects, Hitachi Astemo (Headquarters and overseas operations), Toyota (TOYOTA), and Aisin (Aisin).
2. Cooperation and Joint Effort: Party A and Party B shall establish a close partnership and work together to achieve project nominations and business implementation in the Japanese market. Party B shall exercise its best professional efforts, and Party A shall actively support Party B's development activities, including but not limited to arranging personnel for customer visits in Japan, providing necessary technical support, and responding promptly to customer requirements. Both parties recognize that final project awards are determined by the customer, and both parties undertake a duty of good faith to work toward achieving these goals.

3. Party B shall provide Japanese market development plans and share relevant information at least once a month via email or mutually agreed video conferences.

Article 2: Scope of Authorization

1. Party A authorizes Party B to use Party A's logos, names, and brochures for market development within the scope of this Agreement.
2. Any Japanese translations of such materials must receive prior written approval from Party A before official use.

Article 3: Rights and Obligations

1. Party A has the right to supervise the services provided by Party B. Specific work results newly created by Party B for this project during the consultancy period shall belong to Party A.
2. Limitation of Liability: If Party B causes direct losses to Party A due to willful misconduct or gross negligence, Party B must compensate Party A for actual losses. In any event, the total aggregate liability of Party B shall not exceed the total amount of advisory fees actually paid by Party A to Party B within the 12 months preceding the claim.

Article 4: Advisory Fees and Payment

1. The advisory fee shall be JPY 500,000 per month (Net Amount), payable by the 10th day of each month. All withholding taxes and cross-border remittance fees shall be borne by Party A, ensuring that Party B receives the full amount of JPY 500,000 in the designated account. Taxes and other expenses payable by Party B under local Japanese law shall be declared and borne by Party B.
2. Payment Details:
    - Bank Name: MIZUHO BANK., LTD. (KAWASAKI BRANCH)
    - SWIFT CODE: MHCBJPJT
    - Account Name: MANABU SHIMAOKA
    - Account Number: 5080282
3. Party A shall reimburse actual travel expenses incurred by Party B for customer visits requested by Party A or conducted in the company of Party A's personnel.

Article 5: Force Majeure

Neither party shall be liable for losses caused by unforeseeable and uncontrollable events, including but not limited to fire, flood, war, strike, or epidemic.

Article 6: Term and Renewal

1. The term of this Agreement shall be from April 1, 2026, to March 31, 2027.
2. Renewal: Unless either party provides written notice of non-renewal at least 30 days prior to the expiration of the term, this Agreement shall automatically renew for an additional one-year period under the same terms.

Article 7: Termination and Tail Provision

1. Either party may terminate this Agreement by providing 30 days' prior written notice.
2. Tail Provision: If, within 12 months after termination of this Agreement, a customer engaged by Party B in connection with this Agreement enters into a collaboration with Party A, Party A shall pay Party B reasonable compensation for such achievement, the amount of which shall be negotiated separately.

Article 8: Confidentiality

1. Party B shall maintain the confidentiality of all information obtained during the performance of this Agreement.
2. Liability for Breach: Any compensation for losses caused by a breach of confidentiality shall be subject to the limitation of liability specified in Article 3, Section 2.
3. This obligation shall survive the termination of this Agreement.

Article 9: Dispute Resolution

1. This Agreement shall be governed by the laws of the Hong Kong Special Administrative Region.
2. Any dispute shall first be settled through amicable negotiation. If no settlement is reached, the dispute shall be submitted to the Hong Kong International Arbitration Centre (HKIAC). The language of arbitration shall be English or Japanese.
3. This Agreement is prepared in Chinese and English. In the event of any discrepancy, the English version shall prevail.

Article 10: Supplementary Provisions

1. This Agreement shall become effective upon signature and seal by both parties. This Agreement is prepared in duplicate, with each party holding one copy.